

Getting Started

Motion to Vacate & Expunge Eligible Cannabis Convictions

participant/case info review zone

IMPORTANT: This getting started guide and the instructions are not legal advice. They are only meant to help you learn how to file a *Motion to Vacate & Expunge Eligible Cannabis Convictions* form. Your use of the forms does not guarantee your Motion will be granted.

NOTE: If you are not a citizen of the United States, consult with an immigration lawyer before using these forms.

NOTICIA: Si no es ciudadano de los Estados Unidos, consulte con un abogado de inmigración antes de usando estas formas.

To learn how to fill out the forms and file them with the court, read the *HOW TO FILE A MOTION TO VACATE & EXPUNGE ELIGIBLE CANNABIS CONVICTIONS* instruction booklet and the instructions on the forms.

Name of forms:	<i>Motion to Vacate & Expunge Eligible Cannabis Convictions</i> <i>Notice of Motion to Vacate & Expunge Eligible Cannabis Convictions</i> <i>Order to Vacate & Expunge Eligible Cannabis Convictions</i>
Purpose of the forms:	To get a court order vacating and expunging eligible cannabis conviction(s) under the Cannabis Regulation & Tax Act .
Types of cases the forms CAN be used for:	Misdemeanor and Class 4 felony convictions for Sections 4 and 5 of the Cannabis Control Act .
Types of cases the forms CANNOT be used for:	- Arrests or convictions for other non-cannabis offenses. - Arrests or other cases not leading to conviction for a cannabis offense. - Convictions for Class 3, Class 2, Class 1 or Class X Cannabis offenses. - Out of state and federal cannabis conviction records.
Cost to file the forms:	There may be a fee to file your <i>Motion to Vacate & Expunge Eligible Cannabis Convictions</i> . If you cannot afford to pay the filing fee, you can ask the court to file for free or at a reduced cost by filing the <i>Application for Waiver of Court Fees</i> found at: illinoiscourts.gov/documents-and-forms/approved-forms .
Special information or papers needed to complete the forms:	- Dates of arrests and class of misdemeanor or felony charges; - Outcome of court cases: AND - Addresses of the county State's Attorney's office that filed charges against you.
Statutes covering the forms:	410 ILCS 705
Where to find the forms and instruction sheet:	illinoiscourts.gov/documents-and-forms/approved-forms
For more information:	Read the instruction booklet called <i>How to File a Motion to Vacate & Expunge Eligible Cannabis Convictions</i> . You may also find more information, resources, and the location of your local legal self-help center at illinoislegalaid.org/get-legal-help/lshc-directory or the Office of the State Appellate Defender at Illinois.gov/osad/Expungement .

signature/date review zone

Find Illinois Supreme Court approved forms at: illinoiscourts.gov/documents-and-forms/approved-forms.